

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Motion to Stay Mandate Pending Certiorari

Motion and timing

Filed July 2, 2026.

Blue Cedar Compliance, Inc. moves to stay mandate while it prepares a petition for a writ of certiorari. The court denied rehearing on July 1, and mandate would otherwise issue July 8. This motion is filed before that date. It asks the court to withhold mandate for no more than ninety days, subject to the conditions governing a filed certiorari petition and prompt notice of any disposition.

The proposed petition concerns only the June 15 decision vacating summary judgment on Benton's Title VII retaliation claim. Blue Cedar will not seek review of the holding affirming the narrow exclusion of Tessa Wynn's late declaration. The motion does not ask this court to reconsider rehearing or to alter the opinion while a stay is considered. Blue Cedar recognizes that filing the motion does not itself create a stay and requests an order before the ordinary issuance date.

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Proposed question

Blue Cedar proposes to ask whether an appellate court may find a triable issue of but-for retaliation from decisionmaker knowledge, timing, scoring disputes, and evolving detail in an employer's explanation when the admitted record contains no motive statement and establishes a genuine reduction in force. The question concerns the boundary between reasonable inference under Rule 56 and speculation at the ultimate stage of the Title VII framework.

The proposed petition would rely on the district-court record, the briefs, and this court's opinion. It would not rely on Wynn's excluded motive-related statement, seek review of the Rule 37 ruling, or dispute that Benton's evidence establishes a prima-facie case. The asserted error is that the opinion permits irregularity and suspicion to substitute for evidence connecting protected activity to Pike's final selection. Blue Cedar contends that this recurring issue is suitable for review because reduction decisions often combine documented economic objectives with discretionary comparisons among employees.

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Probability of review and reversal

The proposed question is substantial because it affects how courts distinguish the minimal prima-facie causal showing from proof that retaliation was the real and but-for reason. Blue Cedar contends that the opinion allows the same knowledge and temporal proximity to carry both stages after adding process disagreements that do not themselves concern protected activity. It asserts that the resulting rule conflicts with the requirement that the ultimate causal inference rest on evidence of the prohibited reason.

Blue Cedar acknowledges that certiorari is discretionary and rarely granted merely to correct an asserted misapplication of settled law. It nevertheless argues that the opinion's treatment of cumulative circumstantial evidence presents a recurring boundary question and that there is a significant possibility of reversal or narrowing if review is granted. Benton opposes that characterization and maintains that the panel applied ordinary Rule 56 principles to an unusually detailed record. The court can assess those competing positions without revisiting the affirmed exclusion ruling.

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Good cause and equities

Good cause exists, Blue Cedar argues, because immediate mandate would return the case for pretrial proceedings and possible trial while a certiorari petition directed to the existence of any triable issue is being prepared. Discovery could be reopened, witnesses recalled, and substantial trial preparation undertaken before the threshold summary-judgment question is resolved. A short stay would preserve the present posture and reduce the risk of duplicative proceedings.

Benton responds that the case has already been delayed by the appeal and that remand proceedings do not constitute irreparable injury. She also notes that the panel found genuine disputes on the admitted record and that Wynn's late statement remains excluded. Blue Cedar does not claim a monetary injury alone or ask for an indefinite pause. It proposes a bounded period, prompt notice, and immediate issuance if it decides not to petition or if certiorari is denied. Those conditions, it submits, balance orderly review against Benton's interest in proceeding on remand.

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Requested terms and service

Blue Cedar asks the court to stay mandate for ninety days from entry of an order granting relief. If the company files a certiorari petition during that period, the stay should continue as provided by Federal Rule of Appellate Procedure 41 until the Supreme Court's final disposition. If Blue Cedar does not file, withdraws its request, or receives an adverse disposition, it will notify the clerk immediately and will not oppose prompt release absent a new lawful basis.

Counsel certifies electronic filing and service on Benton's counsel on July 2, 2026. The motion states the proposed question, grounds for review, possibility of a different result, good-cause considerations, requested duration, and Benton's opposition after conference. No new record evidence is attached. The court may resolve the request on these papers or call for a response. Until a stay is granted, Blue Cedar recognizes that the July 8 mandate schedule remains governed by the existing judgment and rehearing-denial order.